

Patents, Trade Marks, Copyright and Designs in Mexico: Overview

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Country Q&A | Law stated as at 01-May-2021 | Mexico

A guide to intellectual property law in Mexico. The Main IPRs Q&A gives an overview of the protection and enforcement of the following IPRs: patents, utility models, trade marks, registered designs, unregistered designs, copyright and confidential information.

Patents

Utility Models

Trade Marks

Copyright

Registered Designs

Unregistered Designs

Trade Secrets and Confidential Information

Contributor Profile

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Patents

1. What are the legal requirements to obtain a patent?

To be patentable, an invention must:

- Be novel.
- Result from an inventive step (non-obvious).
- Be capable of industrial application (possessing utility).

(Article 48, Federal Law for the Protection of Industrial Property.)

2. What categories are excluded from patent protection?

The following are excluded from patent protection:

- Essentially biological processes for obtaining, reproducing and propagating plants and animals.
- Biological and genetic material as found in nature.
- Animal breeds.
- The human body and the living parts constituting the human body.
- Plant varieties.
- Theoretical or scientific principles.
- Findings that consist in making public or disclosing something that already existed in nature, even though it was previously unknown to man.
- Diagrams, plans, rules and methods for carrying out mental processes, playing games or doing business, and mathematical methods.
- Computer programs.
- Methods to present information.
- Aesthetic creations and artistic or literary works.
- Surgical and therapeutic treatment or diagnostic methods applicable to the human body and/or animals.
- Juxtaposition of known inventions or mixtures of known products, or alteration of the use, form, dimensions or materials of such inventions or products, except when:
 - they are so combined or merged that they cannot function separately; or
 - their particular features or functions have been so modified that they produce an industrial result or their use is not obvious to a person skilled in the art.

(Article 49, Federal Law for the Protection of Industrial Property.)

3. Which authority registers patents? Does its website provide guidance on the application procedure?

The Mexican Institute of Industrial Property (*Instituto Mexicano de la Propiedad Industrial*) (IMPI) registers patents. Information on the application procedure is available on its website (www.impi.gob.mx).

The IMPI can refuse to grant a patent on various grounds, including when:

- The application does not meet the legal requirements for grant.
- The invention does not meet the novelty, inventive step or utility requirements (see [Question 1](#)).
- The invention is against public order or violates a legal provision.

4. On what grounds and when can third parties oppose a patent application?

A third party can oppose a patent application by submitting to the IMPI information showing failure to meet any of the substantive requirements of patentability. The requirements of patentability are set out in Articles 51 and 52 of the Federal Law for Industrial Property Protection. Oppositions must be made to IMPI within two months of the publication date of the application in the *Industrial Property Official Gazette*.

The validity of a patent can be challenged through a nullity action before the IMPI on the following grounds:

- The subject matter is excluded from patent protection (see [Question 2](#)).
- Disclosure is not clear and sufficient to enable the invention to be performed.
- The claims exceed those originally disclosed.
- The invention is disclosed in a divisional application and includes illegal claims.
- The patent has been subject to rectification or limitation.
- The patent was granted in error or due to serious oversight, or was granted to a person who was not entitled to obtain it.
- The patent was granted in violation of the law in force at the time of the patent was granted or registered.
- The patent was granted to a person who has no right to obtain exclusive protection.

Invalidation actions can be brought at any time. The IMPI can decide to partially invalidate a patent, if applicable. In its final resolution deciding on the partial invalidation of a patent, the IMPI will explain all the changes resulting from the invalidation proceeding.

5. When does patent protection start and how long does it last?

The patent is granted for a period of 20 years from either the:

- Filing date of the patent application in Mexico.
- International filing date, in the case of a Patent Cooperation Treaty application.

6. On what grounds can a patent infringement action be brought?

Patent infringement actions can be brought against parties that are:

- Engaging in acts contrary to proper practice and custom in industry, commerce and services that amount to unfair competition and that relate to the subject matter regulated by the Intellectual Property Law.
- Making unpatented products appear as patented.
- Performing, in the course of industrial activities or trade, acts that confuse, mislead or deceive the public.
- Manufacturing or developing goods covered by a patent without the consent of the owner or without the appropriate licence.
- Offering for sale or bringing into circulation goods covered by a patent in the knowledge that they have been manufactured or developed without the consent of the owner of the patent or without the appropriate licence.
- Using patented processes without the proper authorisation of the owner or without the appropriate licence (use includes the manufacture, production, imitation, storage, distribution, import, export, offer for sale, marketing, transport and putting into circulation).
- Offering for sale or putting into circulation goods resulting from patented processes used without the consent of the patent owner or without the appropriate licence.

7. Which courts deal with patent infringement actions? Is there a fast-track and/or a small-claims procedure?

Patent infringement actions must first be brought before the IMPI. Appeals must be brought either before the Federal Administrative Court through a nullity claim or before the District Court by means of an *Amparo* appeal. The final appeal is heard by the Circuit Court.

There is no fast-track or small-claims procedure.

8. What are the defences to patent infringement actions?

The most common defence is that the patent is invalid. To be effective, a defence of invalidity must be brought as a counterclaim and submitted on filing the response to the infringement action.

9. What are the remedies in patent infringement actions?

The patent holder can request preliminary measures if the following requirements are met:

- The patent holder must show ownership of the patent, as well as an imminent violation of its rights and the possibility of suffering irreparable damage.
- The patent holder must provide security or an economic guarantee.
- The patent holder must provide the necessary information to determine the specific goods that are the object of the infringement.

(Federal Law for the Protection of Industrial Property.)

The IMPI can:

- Order infringing goods to be removed from circulation.
- Immediately forbid the distribution or use of infringing goods.
- Order the seizure of infringing goods, if these have been seized by the authorities and removed from circulation.
- Order the infringer to cease and desist from acting in violation of IP law.
- Order the infringer to suspend provision of services or order the closure of their commercial establishment, if needed.

Administrative infringements are punishable with:

- A fine of up to MXN21.72 million.
- An additional fine of up to MXN86,000 for each day that the infringement continues.
- Temporary closure of the business for up to 90 days.
- Permanent closure of the business.

Once the IMPI decision declaring an administrative offence is enforceable, the patent owner can bring a claim for damages before the courts (*Federal Law of Administrative Procedure*). To determine the amount of compensation, the court will take into account the date on which the proven infringement took place and, on request of the patent owner, any evidence of the patent's value.

Utility Models

10. What are the legal conditions to obtain utility model protection?

To be protected as a utility model, an invention must be:

- New.
- Capable of industrial application.

(Article 58, *Federal Law for the Industrial Property Protection*.)

11. Which authority grants utility model protection? Does its website provide guidance on the application procedure?

The IMPI registers utility models. Information on the application procedure is available on its website (www.impi.gob.mx).

12. On what grounds and when can third parties oppose a utility model application?

There is no opposition procedure against utility model applications.

13. When does utility model protection start and how long does it last?

Utility model protection lasts 15 years from the application filing date.

14. On what grounds can a utility model infringement action be brought?

See [Question 6](#).

15. Which courts deal with utility model infringement actions? Is there a fast-track and/or a small-claims procedure?

See [Question 7](#).

16. What are the defences to utility model infringement actions?

See [Question 8](#).

17. What are the remedies in utility model infringement actions?

See [Question 9](#).

Trade Marks

18. What are the legal requirements to obtain a trade mark?

The following signs can constitute a trade mark:

- Denominations or visible signs that are sufficiently distinctive and capable of identifying goods or services from others of the same class or kind.
- Three-dimensional forms.
- Trade names and denominations or corporate names.
- The name of a natural person, as long as it is not confusingly similar to a registered trade mark or a published trade name.

(Article 171, Federal Law for Industrial Property Protection.)

19. Is it necessary or advisable to register trade marks?

Registration is necessary as it confers the exclusive right to use a trade mark and to oppose third parties' use of that mark.

20. Which authority registers trade marks? Does its website provide guidance on the application procedure?

The IMPI registers trade marks. Information on the application procedure is available on its website (www.impi.gob.mx).

21. On what grounds can the regulatory authority refuse to register a trade mark?

The grounds for refusal are as follows:

- Animated or changing denominations, figures or three-dimensional signs.
- Generic terms.
- Descriptive marks or indicative words.
- Isolated letters, digits or colours.
- Translation into other languages, spelling variation or artificial construction of unregistrable words.
- Signs that include the coats of arms or emblems of any country, state, municipality or other political entity.
- Geographically descriptive or misdescriptive marks.
- Names of towns or places that are associated with the manufacture of certain products.
- Names, pseudonyms, signatures and portraits of persons without the consent of the interested parties.
- Titles of intellectual or artistic works, titles of periodical publications, advertising promotions and fictitious characters.
- Trade marks that constitute false indications as to the nature, components or qualities of the goods or services.
- Denominations, figures or three-dimensional forms identical or similar to a trade mark that the IMPI considers to be well known or famous in Mexico.
- Trade marks that are identical or confusingly similar to previously registered trade marks or trade names that have been previously filed or published.

(Article 173, Federal Law for the Industrial Property Protection.)

22. On what grounds and when can third parties oppose a trade mark application?

A third party can oppose a trade mark application before the IMPI within one month of the publication date of the application in the *Industrial Property Official Gazette*.

The grounds to oppose a trade mark application are the same as the grounds for refusal of registration (see [Question 21](#)).

The validity of a trade mark registration can be challenged through a cancellation action before the IMPI under any of the following grounds:

- Non-use. This applies if the trade mark has not been used within three consecutive years before the cancellation action filing date. A cancellation action based on non-use can be brought after three years from the granting date of the challenged trade mark.
- The trade mark registration was granted in violation of the provisions of the Federal Law for the Industrial Property Protection. An action based on this ground can be brought at any time.
- Prior use. This applies if the trade mark is identical/confusingly similar to another mark that has been used in Mexico or abroad before the application for registration in relation to the same or similar products or services. A cancellation action based on prior use must be brought within three years of the publication date of the registration in the *Official Gazette*.
- False data. This applies if the trade mark registration was granted on the basis of false information in the application. A cancellation action based on this ground must be brought within five years of the publication date of the registration in the *Official Gazette*.
- The trade mark registration was granted in error, by mistake, or owing to a difference of judgement relating to a prior identical or confusingly similar mark applied to identical or similar services or products. A cancellation action based on this ground must be brought within five years of the publication date of the registration in the *Official Gazette*.
- Bad faith. This applies when the agent, representative, user or distributor of the owner of a trade mark registered abroad applies for and obtains registration of the same or a confusingly similar mark, without the express consent of the owner of the foreign trade mark. An action based on this ground can be brought at any time.

23. When does trade mark protection start and how long does it last?

Exclusive trade mark rights start from registration. The registration is valid for ten years from the filing date and can be renewed indefinitely for further ten-year periods.

24. On what grounds can a trade mark infringement action be brought?

A trade mark infringement action can be brought where a third party:

- Uses a mark that is confusingly similar to a registered trade mark.
- Without the trade mark owner's consent, uses an identical or confusingly similar mark as an element of a trade name or a firm or corporate name, if the trade name, firm or corporate name relates to establishments that relate to the products or services protected by the trade mark.
- Uses a registered trade mark as a name, sign, symbol, initial or emblem.
- Without the trade mark owner's written consent, uses an identical or confusingly similar mark as a trade name, firm or corporate name (or as part of it) of a natural or corporate person whose activity is the production, import or marketing of commodities or services identical or similar to those applied to the registered trade mark.
- Uses a registered trade mark, without the consent of the holder or without a licence, in relation to identical or similar products or services.

25. Which courts deal with trade mark infringement actions? Is there a fast-track and/or a small-claims procedure?

Trade mark infringement actions must first be brought before the IMPI. Appeals must be brought either before the Federal Administrative Court through a nullity claim or before the District Court by means of an *Amparo* appeal. The final appeal is heard by the Circuit Court.

There is no fast-track or small-claims procedure.

26. What are the defences to trade mark infringement actions?

The most common defence is that the trade mark is invalid. To be effective, a defence of invalidity must be brought as a counterclaim and submitted on filing the response to the infringement action.

27. What are the remedies in trade mark infringement actions?

The remedies are similar to those in patent infringement actions (see [Question 9](#)).

Copyright

28. What is the scope of copyright protection?

Copyright protection gives the copyright owner moral and economic rights.

Economic rights give the author the exclusive rights to authorise others to:

- Reproduce the work.
- Disseminate derivative works based on the original work.
- Distribute copies of the work to the public.
- Perform the work publicly.
- Display the work publicly.
- Broadcast the work or communicate the work to the public through any means.
- Import the work into Mexico.
- Use the work publicly.

Mexican law also provides for the protection of reservation rights (*reservas de derechos*), which grant the holder the right to exclusive use of:

- Titles of serial publications.
- Names of TV and radio shows.
- Artistic names of individuals or groups.
- Human and fictitious characters.

- Original advertising formats.

See [Question 30](#) for information on moral rights.

29. What categories of subject matter are eligible for protection?

The following categories of subject matter are eligible for protection:

- Literary works.
- Musical works (with or without lyrics).
- Dramatic works.
- Choreographic works.
- Pictorial and graphic works.
- Sculptural and artistic works.
- Cartoon and comic books.
- Architectural works.
- Films and audiovisual works.
- Radio and television programmes.
- Computer programs.
- Photographic works.
- Works of applied art.
- Databases.

30. Are moral rights protected?

Moral rights are protected under the Federal Law on Copyright (FLC).

Moral rights include the rights to:

- Disclose the work (disclosure right).
- Be acknowledged as the author of the work, or to remain anonymous or be identified by a pseudonym (paternity right).
- Prevent modifications of the work (integrity right).
- Withdraw the work from the market.
- Amend the work.
- Object to the paternity of works created by other authors.

Moral rights are protected during the author's life. Moral rights cannot be waived.

31. What are the legal requirements to obtain copyright protection?

The basic requirements to obtain copyright protection are:

- Fixation (incorporation of the work in a tangible medium of expression).
- Authorship (only individuals can be granted authors' rights).
- Originality of the work.

(FLC.)

32. Can copyright be registered?

Copyright can be registered with the Copyright Office. Registration is not compulsory and copyright protection does not depend on registration. However, registration is necessary to enforce copyright as it is evidence of copyright ownership.

33. When does copyright protection start and how long does it last?

Protection starts from the moment the work is created. An author's rights are protected throughout the life of the author plus 100 years after the author's death or the death of the last surviving author (for joint works).

The "droit the suite" (that is, the right of authors of plastic works and photographs to receive a percentage of the sale price on the resale of their works), which was recently introduced, cannot be waived and is protected for 100 years after the author's death.

The rights of actors and performers last 75 years from any of the following:

- First performance.
- First fixation of their performance in a phonogram (if the performance can be recorded).
- First broadcasting of their performance on any available media.

Neighbouring rights are protected for a term of 50 years from the date of first publication or fixation.

Reservation rights (*see Question 28*) are granted on issuance of a certificate by the National Copyright Institute and last:

- Five years from issuance of the certificate.
- One year from issuance of the certificate for names of serial publications and TV or radio shows.

34. On what grounds can a copyright infringement action be brought?

A copyright infringement action can be brought where, for example:

- A licensee violates the terms of a compulsory licence.
- A publisher, printer, producer, employer, broadcasting organisation or licensee concludes a contract for the purpose of transferring copyright in violation of the law.
- A published work does not include the mention "All rights reserved" and/or specific information required by the FLC.
- A published work does not include the name of the author, translator, compiler, adapter or arranger.
- A work is published in a manner that damages the reputation of the author, translator, compiler, arranger or adapter.

- The title of a work is used fraudulently, which causes confusion with a work published previously.

(Article 229, FLC.)

Certain acts carried out for commercial purposes also qualify as trade-related infringements, such as:

- Using a protected work without the prior authorisation of the author.
- Using the image of a person without their permission.
- Producing, manufacturing, stocking, distributing, transporting or marketing unlawful copies of protected works.
- Commercialising a protected work without authorisation.
- Using, reproducing or exploiting a computer program without the consent of the owner.

(Article 231, FLC.)

35. Which courts deal with copyright infringement actions? Is there a fast-track and/or a small-claims procedure?

The following courts deal with copyright infringement actions:

- Federal Court for Tax and Administrative Affairs.
- Federal Circuit Court.

The Copyright Office and the IMPI deal with administrative infringement actions.

There is no fast-track or small-claims procedure.

36. What are the defences to copyright infringement actions?

The most common defence is to challenge the validity of the copyright.

37. What are the remedies in copyright infringement actions?

Preliminary injunctions are the most common remedy.

Administrative infringements are punished with fines ranging from MXN688,000 to MXN1.9 million, depending on the nature and severity of the offence. An additional fine equal to 500 times the minimum salary effective in Mexico City applies for each day the violation persists.

Once the decision declaring the infringement is final, it is possible to claim damages before a Civil Court.

Registered Designs

38. What are the legal conditions to obtain a registered design?

Industrial designs that are new and susceptible of industrial application are registrable.

A design is new if it was independently created and differs in significant degrees from known designs or combinations of known design features. Industrial designs and industrial models are included in this category.

39. Which authority registers designs? Does its website provide guidance on the application procedure?

The IMPI registers designs. Information on the application procedure is available on its website (www.impi.gob.mx).

40. On what grounds and when can third parties oppose a registered design application?

There is no opposition procedure against design applications.

41. When does registered design protection start and how long does it last?

Registered design protection lasts five years from the application filing date. Registration can be renewed for additional five-year periods, up to a maximum of 25 years from the application filing date.

42. On what grounds can a registered design infringement action be brought?

A design infringement action can be brought where:

- Goods protected by an industrial design registration are manufactured or developed without the consent of its owner or without the appropriate licence.
- Goods protected by an industrial design registration are offered for sale or brought into circulation in the knowledge that they have been manufactured or developed without the consent of the owner of the owner or without the appropriate licence.
- Designs protected by an industrial design registration are reproduced or imitated without the consent of the owner or without the appropriate licence.

43. Which courts deal with registered design infringement actions? Is there a fast-track and/or a small-claims procedure?

Registered design infringement actions must first be brought before the IMPI. Appeals must be brought either before the Federal Administrative Court through a nullity claim or before the District Court by means of an Amparo appeal. The final appeal is heard by the Circuit Court.

There is no fast-track or small-claims procedure.

44. What are the defences to registered design infringement actions?

The most common defence is to challenge the validity of the design.

45. What are the remedies in registered design infringement actions?

The remedies are similar to those in patent infringement actions (*see Question 9*).

Unregistered Designs

46. What are the legal conditions for unregistered design rights to arise?

There is no protection for unregistered designs in Mexico.

47. When does unregistered design protection start and how long does it last?

There is no protection for unregistered designs in Mexico.

48. On what grounds can an unregistered design infringement action be brought?

There is no protection for unregistered designs in Mexico.

49. What are the defences to unregistered design infringement actions?

There is no protection for unregistered designs in Mexico.

50. What are the remedies in unregistered design infringement actions?

There is no protection for unregistered designs in Mexico.

Trade Secrets and Confidential Information

51. What are the legal conditions for rights in confidential information to arise?

A trade secret is any information of industrial or commercial application that a person keeps confidential to obtain or maintain a competitive or economic advantage over third parties, and with respect to which they have adopted sufficient means or systems to maintain confidentiality and restricted access (*Article 163, Federal Law for the Protection of Industrial Property*).

Trade secrets can be stored in documents, electronic files, optical discs, microfilms, films or any other known or unknown medium.

52. On what grounds can an action for unauthorised use of confidential information be brought?

An individual or a company that hires a worker who is working or has worked, or a professional, adviser or consultant who provides or has provided his services, for another person to obtain industrial secrets will be responsible for payment of damages caused to that person.

The following are criminal offences:

- Revealing to a third party a trade secret that was known through employment or as a result of the granting of a licence.
- Appropriating a trade secret without the right to do so.
- Using information constituting a trade secret that is known through employment, without the consent of the person keeping it or its authorised user.

53. Which courts deal with actions for unauthorised use of confidential information? Is there a fast-track and/or a small-claims procedure?

The following courts deal with actions for unauthorised use of confidential information:

- Federal criminal courts.
- Federal Circuit Court.
- Civil courts.

There is no fast-track or small-claims procedure.

54. What are the defences to actions for unauthorised use of confidential information?

The following will not be considered to be a trade secret:

- Information that is in the public domain.
- Information that is evident to a person skilled in the art on the basis of previously available information.
- Information that must be disclosed by virtue of a legal provision or court order.

In addition, the following will not be considered misappropriation of trade secrets:

- Independent discovery or creation of the information that is claimed as a trade secret.

- Observation, study, disassembly or testing of a product or object that has been available to the public or lawfully in the possession of the person who obtains the information, provided that they are not subject to any obligation of confidentiality regarding industrial secrecy.
- Acquisition of the information from another person in a legitimate way without any confidentiality obligation or without knowledge that the information was a trade secret.

55. What are the remedies in actions for unauthorised use of confidential information?

The most common remedy is an injunction (preliminary and final)

The criminal penalties for unauthorised use of confidential information are:

- Imprisonment between two and six years.
- A fine between MXN86,000 and MXN25.8 million.

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Recent Transactions

- Advising a multinational alcoholic beverages company on several transactions intended to grow its tequila segment, including the acquisition of two premium brands in Mexico.
- Advising a multinational dairy and food corporation on the acquisition of a brand of dairy products in Mexico.
- Advising several clients in litigious actions with the administrative authorities and federal courts.
- Advising several clients on data privacy matters to align their legal structure to the specific provisions of the recently enacted Data Privacy Law.

Languages. Spanish, English

Professional Associations/Memberships. International Trademark Association (INTA); Mexican Association for the Protection of Intellectual Property (AMPPI).

Publications. *MCI can look but not touch (regarding amendments to the Mexican Copyright Law), World Intellectual Property Review, July/August 2013.*

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